

OPINION BY M. NEGULESCO.

[*Translation.*]

The undersigned differs from the majority of the Court for the following reasons :

On March 29th, 1928, the Government of the French Republic and the Swiss Federal Council notified the Court of the Special Agreement concluded between them on October 30th, 1924, concerning the free zones of Upper Savoy and the District of Gex.

Article 1 of the Special Agreement states the question put to the Court.

Under this article, the Court has to decide what is the correct interpretation of Article 435, paragraph 2, with its annexes, of the Treaty of Versailles, and to say whether "as between France and Switzerland" that article and its annexes "has abrogated or is intended to lead to the abrogation of" the provisions of the treaties of 1815 which established the free zones of the District of Gex and Upper Savoy.

The request made to the Court that it shall say whether Article 435, paragraph 2, with its annexes, "has abrogated or is intended to lead to the abrogation of" the provisions of the treaties of 1815, must be construed as meaning that, if the Court arrives at the conclusion that the provisions in question are not abrogated, it must consider whether Article 435, paragraph 2, "is intended to lead to the abrogation of" these provisions. This expression refers to two different situations, one implying that Switzerland is under an obligation to abrogate the provisions relating to the free zones by means of an agreement to be concluded with France, the other, on the contrary, leaving Switzerland entirely free as to the basis and conclusions of this agreement.

According to the first of these interpretations, Switzerland's obligation would be to accept as the basis of the future negotiations the disappearance of the obsolete régime which compelled France to withdraw her customs barrier behind her

political frontier; according to the second interpretation, on the contrary, Switzerland, not being bound in this way, would be free to conclude or not to conclude the agreement under such conditions as she considered suitable.

The expression "as between France and Switzerland" seems *prima facie* to be without meaning, for an article of a treaty must be read in the same way whether it concerns signatories of the treaty or non-signatories.

The expression "as between France and Switzerland" can only be understood in one way, namely, that it is for the Court to ascertain the meaning of Article 435, paragraph 2, taken by itself, and then to see, after examining the annexes and the treaties of 1815, how far the terms of this article can be enforced as against Switzerland which took no part in the signature of the Treaty of Versailles.

* * *

The treaties of 1815, concluded for an indefinite period, were imposed on France in consequence of the situation of fact which made the economic life of Geneva very difficult owing to the proximity of the French customs barrier which coincided with the political frontier. It was this which led the Powers to compel France to withdraw her customs barrier so as to make possible the creation of the free zones of the District of Gex and Upper Savoy.

The situation of fact changed during the XIXth century. Switzerland, having achieved political unity, established her customs barriers on her frontiers in 1849. The zones which, before 1849, had only received the produce of the Canton of Geneva, now received produce from the whole of Switzerland.

France could not, in consequence of this changed situation, unilaterally denounce the treaties of 1815. When Russia, in 1870, during the war between France and Germany, declared that she would no longer be bound by the stipulations of the Treaty of Paris of 1856 concerning the neutralization of the Black Sea, the Powers assembled at London proclaimed the principles set forth in the Protocol of January 17th, 1871. The Powers recognized the right to invoke the clause *rebus sic*

stantibus as a ground for the extinction of treaties, but at the same time rejected Russia's claim to be able unilaterally to denounce a treaty.

Article 19 of the Treaty of Versailles permits changes in or the abrogation of a treaty which has become inapplicable owing to a new situation having arisen; but only as a result of a unanimous vote of the Assembly of the League of Nations and not by means of a unilateral declaration. Article 19 of the Treaty of Versailles therefore confirms the validity of the clause *rebus sic stantibus* and at the same time rejects any claim to apply it unilaterally.

Article 435 of the Treaty of Versailles is simply the application of this principle. When the Powers signatory to the treaties of 1815 were reassembled at Versailles, they were in a position to decide by agreement whether the claim of France was well founded.

France, in fact, had submitted two claims for the abrogation of former stipulations: one in regard to the zones of Upper Savoy neutralized from a military standpoint, and the other in regard to the free zones of Upper Savoy and the District of Gex.

The Powers signatory to the Treaty of Versailles recognized in both cases that the French claim was well founded and that the treaties of 1815, concluded by reason of the situation of fact, were "no longer consistent with present conditions". The Powers stated this in the terms of Article 435.

This article is in fact composed of two paragraphs which relate to two different matters: the first deals with the zone of Upper Savoy neutralized from a military standpoint and mentions the agreement between France and Switzerland, the second deals with the free zones of Upper Savoy and the District of Gex and does not mention this agreement. This is explained by the fact that, France having recognized at the Conference that Switzerland had adhered to the Treaty of November 20th, 1815, concerning the zone neutralized from a military standpoint, Switzerland's consent was required; on the other hand, as France maintained that Switzerland had taken no part in the Treaty of 1815 concerning the free zones, the latter country's consent was not necessary.

When the Powers recognized in paragraph 1 of Article 435, as regards the zone of Upper Savoy neutralized from a military standpoint, that the provisions of the treaties of 1815 and other supplementary acts were "no longer consistent with present conditions", they stated that these provisions were and remained abrogated; this is expressly set forth in the last part of the first paragraph, as a consequence of their recognition of the fact above mentioned: "for this reason the High Contracting Parties take note of the agreement reached between the French Government and the Swiss Government for the abrogation of the stipulations relating to this zone which are and remain abrogated".

The second paragraph begins as follows:

"The High Contracting Parties also agree that the stipulations of the treaties of 1815 and of the other supplementary acts concerning the free zones of Upper Savoy and the Gex District are no longer consistent with present conditions...."

The expression "also" connects the two paragraphs and shows the needlessness of a declaration of abrogation which, in the first paragraph, is the consequence of the establishment of the fact that the stipulations of the treaties of 1815 are no longer consistent with present conditions. When the Powers add, in the second paragraph: "and that it is for France and Switzerland to come to an agreement together with a view to settling between themselves the status of these territories under such conditions as shall be considered suitable by both countries", they indicate that the two States are placed on an equal footing by the abolition of the régime of the free zones, and consequently that it is for France and Switzerland to settle between themselves the régime of these territories.

It is in fact generally recognized that the signatories of a great political treaty, which has changed the map of the world, may abrogate even tacitly the provisions of previous treaties which are not consistent with present conditions.

The Treaty of Versailles, in several cases of the abrogation of previous stipulations, sometimes proceeds by way of express abrogation, but at other times abrogation follows implicitly from a declaration to the effect that conditions have changed.

Thus Article 31 of the Treaty of Versailles says that the stipulations of the treaties of April 19th, 1839, which established the status of Belgium, "no longer conform to the requirements of the situation". It is to be noted that though abrogation has not been decreed by all the Powers signatory to the Treaty of Versailles, but only consented to by Germany, this phrase is to be regarded as the statement of a fact from which abrogation follows as a consequence. Thus, the Preamble of the Treaty of Locarno, signed on October 16th, 1925, between Germany, Belgium, France, Great Britain and Italy, notes the abrogation of the treaties of 1839 concerning the neutrality of Belgium. The same interpretation has been adopted by the Dutch Government in its negotiations with Belgium, with a view to the settlement of the situation resulting from Article 31 of the Treaty of Versailles.

* * *

The preparatory work further demonstrates France's unchanging intention to abrogate the provisions of the 1815 treaties concerning the free zones and the attitude adopted by Switzerland, which did not oppose the abrogation by asserting her right to the free zones.

On December 18th, 1918, the French Ambassador informed the Federal Council that the French Government "had made up its mind to abolish the survivals of another epoch which were no longer consistent with present requirements".

In the French note of February 24th, 1919, sent to the Swiss Minister at Paris, the question of "substituting for the free zones régime a régime which would conform to modern ideas and requirements and which would be based on an equitable system of reciprocity" was raised.

But no reciprocity can be said to exist without the abolition of the free zones and the establishment of a line of customs at the political frontier. On April 29th, 1919, in M. Pichon's letter to M. Ador, France's intentions are clearly specified: firstly, the abolition by the Powers of the 1815 treaty stipulations and, secondly, the conclusion of an agreement with Switzerland on an equal footing.

In the telegram of May 3rd to the French Chargé d'affaires, M. Pichon reaffirms France's wish to abolish the provisions of the 1815 treaties.

Furthermore, Switzerland does not assert either by her note of January 14th, or by her notes of May 2nd and May 5th, that her assent was legally requisite for the abrogation of the 1815 treaties by which the zones régime is imposed upon France; it was only on May 29th, 1919, after the insertion of Article 435 in the Treaty of Versailles, by a decision taken by the signatory Powers, that Switzerland declares that she has a right, since the stipulations of the 1815 treaties "cannot be modified or replaced otherwise than by common agreement between Switzerland and France".

The foregoing proves that the signatory Powers to the Treaty of Versailles, at the time when Article 435 was adopted, did not encounter any opposition on the part of Switzerland, by way of the assertion of her right. It is consequently difficult to accept the contention that the Powers, including France, had proclaimed that a diminution of sovereignty, imposed upon France, was to continue its existence in the future.

* * *

The two annexes attached to Article 435 of the Treaty of Versailles are two notes: one dated May 5th, 1919, is addressed to the French Government by the Swiss Federal Council; the other, dated May 18th, is the French Government's reply to the note of May 5th.

The two notes were not addressed to the signatory Powers to the Treaty of Versailles, but were mutually exchanged between the two Governments. They must be looked upon as unilateral declarations possessing equal legal weight, since they were inserted in the Treaty before June 28th, 1919, the date upon which the Treaty was signed.

France brought about the insertion of these notes because it was in her interest to do so. Article 435 had abrogated the treaty stipulations of 1815 without Switzerland's assent. France, whilst contesting Switzerland's right to oppose abrogation—since in France's view Switzerland had not participated

in the 1815 treaties which had created the free zones—, nevertheless wished on political grounds to obtain her assent for the purpose of maintaining good neighbourly relations. France claims that the note of May 5th embodies Switzerland's consent to the abrogation; Switzerland maintains the opposite.

The Swiss note of May 5th must be considered as a declaration by which Switzerland recognizes an article of the Treaty subject to the reservations contained in the declaration. This unilateral action can only have one effect: to bind Switzerland within the limits of her own declaration.

By its note of May 5th, the Swiss Government informs the French Government that after examining the provisions of Article 435, it is happy to acquiesce therein, under the following reservations. The first reservation concerning the free zones of Upper Savoy and the District of Gex is that the Swiss Government does not desire to accede to the declaration by the Powers "that the stipulations of the treaties of 1815 are no longer consistent with present conditions", since "its acceptance of the above wording" might "lead to the conclusion that it would agree to the suppression of a system which has been well tested".

This refusal by Switzerland to accede gives us the interpretation which the Swiss Government itself attributed to the stipulations of Article 435, paragraph 2; it recognizes that the words "are no longer consistent with present conditions" mean the abrogation of the 1815 treaties.

Article 435, paragraph 2, after abrogating the 1815 treaties, provides for the possibility of France and Switzerland settling in common agreement between themselves the régime of these territories. The Swiss note of May 5th, by its second reservation, accepts the abrogation on condition that the zones régime remains in force until a new arrangement is made between Switzerland and France.

Then, moreover, there follows sub-section (b) of the Swiss note which, being inserted at the end of the note, is a provision of a transitory nature:

"(b) It is conceded that the stipulations of the treaties of 1815 and other supplementary acts relative to the free zones will remain in force until a new arrangement is

come to between France and Switzerland to regulate matters in this territory."

Switzerland agrees that upon the day the new agreement comes into force the former stipulations will cease to exist. But it is impossible to see by what legal process these stipulations will cease to exist unless it is by the abrogation of the stipulations by the provisions of Article 435, paragraph 2, of the Treaty of Versailles.

By its note of May 18th, 1919, the French Government in the first place takes note of the adherence of the Federal Government to the draft article to be inserted in the Treaty of Versailles, and, as regards the Swiss reservations relating to the free zones, the French Government agrees with the Swiss Government to a "provisional" maintenance of the 1815 régime until the "conventional régime" between the two Powers comes into force. Moreover, the French Government "have no doubt that the provisional maintenance of the régime of 1815 as to the free zones referred to in the above-mentioned paragraph of the note from the Swiss Legation of May 5th, whose object is to provide for the passage from the present régime to the conventional régime, will cause no delay whatsoever in the establishment of the new situation which has been found necessary by the two Governments".

Since the two notes are of equal weight legally, we must consider whether they are in agreement or whether they are contradictory. The agreement between France and Switzerland, to which the second reservation relates, not having been so far concluded, it is the first reservation, consisting in Switzerland's refusal to give her consent to the abrogation of the 1815 treaties, which must be taken into consideration. And since this is in contradiction with the note of the French Government of May 18th, the inference is that the two notes mutually nullify each other and we are brought back to Article 435, paragraph 2, of the Treaty of Versailles.

It should be observed that at the time when the Treaty of Versailles was signed, France, who had never abandoned her claim to the abrogation of the 1815 treaties as regards the free zones, had previously brought about the insertion, as an annex, of her note of May 18th, 1919, and this further confirms her intention to abrogate the provisions in question. And

since France and all the other Powers unanimously adopted Article 435, it is not easy to say that the Powers meant, contrary to the intention of France, to continue in the future, for the benefit of Switzerland, the régime of the free zones which constitutes, as regards France, a diminution of her sovereignty.

* * *

What the Powers wished to effect by Article 435, paragraph 2, was the abrogation of the 1815 treaty stipulations. The question is whether they were entitled to do so without Switzerland's assent. This leads to a consideration of the question whether Switzerland took part in the 1815 treaties or whether these treaties created a right in favour of Switzerland.

As regards the free zone of Upper Savoy, known as the Sardinian zone, Switzerland had a right by virtue of the Treaty of Turin of March 16th, 1816, which could not be abrogated by virtue of Article 435, paragraph 2, without Switzerland's assent.

The facts antecedent to the Treaty of Versailles, in particular the establishment of the Federal customs in 1849, which are considered relevant by the Court and which led to the drafting of Article 435, paragraph 2, may, in so far as concerns the Sardinian zone, justify abrogation by application of the clause *rebus sic stantibus* in virtue of an agreement freely concluded between France and Switzerland.

As regards the Gex zone, it was created by the Treaty of November 20th, 1815, signed and ratified by France with Austria, Great Britain, Prussia and Russia. Switzerland did not participate in this Treaty either as a signatory or by her adherence thereto.

Since Switzerland had no contractual right by virtue of the Treaty of November 20th, 1815, we must consider whether the Powers stipulated a right in her favour by virtue of that Treaty.

It is possible, in an international convention, to stipulate a right in favour of a third State. But whereas, according to such municipal laws as allow of such a stipulation, the third Party has a right by virtue of the stipulation itself, in international law the States having made such a stipulation

mutually undertake to conclude—together with the third State—a supplementary agreement which will be appended to the agreement originally made. With this object, the treaty may provide for the right of adherence by third Powers interested therein, and failing a stipulation of this nature, an agreement between the signatory States and the third State must be concluded.

The adherence of a third State to a treaty already concluded can only take place where such a right has been provided for therein. But the Treaty of November 20th, 1815, does not provide in favour of any other State for any right of adherence.

The Court, by its Judgment No. 7, laid down that Poland, who was not a signatory of the Armistice Convention or of the Spa Protocol, cannot avail herself of these instruments, since, as the Court laid down: "The instruments in question make no provision for a right on the part of other States to adhere to them."

Switzerland, being unable to assert adherence, must prove that an agreement was concluded between her and the Powers signatory to the Treaty of 1815 establishing that France had accepted an obligation towards Switzerland to withdraw her customs barrier and that consequently the provisions in question cannot be abrogated without Switzerland's consent. If Switzerland cannot prove that an agreement was made between herself and the Powers under the conditions above mentioned, it must be concluded that France can be under no obligation in virtue of the Treaty of November 20th, 1815, except towards the signatory Powers.

Again, in order that a State may make use of a stipulation in its favour, the name of that State must be mentioned in the treaty in question. The Treaty of November 20th, 1815, imposes on France the obligation to withdraw her customs barrier behind her political frontier and does not indicate that there is any question of a right in favour of Switzerland. The terms of the Treaty are as follows:

[*Translation.*]

"The line of the French customs shall be placed to the west of the Jura so that the whole of the District of Gex shall be outside this line."

Switzerland's name does not even appear in the provisions relating to the creation of the zone. There is nothing but the obligation of France to withdraw her customs barrier behind the political frontier. As the Treaty says nothing, it is to be concluded that the Great Powers signatory of the Treaty of 1815 are the holders of the rights to be exercised against France. It is impossible, by reason of the silence of a treaty, to create rights in favour of third States. It is clear that Switzerland has a great interest in the existence of this zone, but this interest does not justify the exercise of a right.

Even if it be held that several States may, under a treaty, create rights in favour of a third State without its name being even mentioned, it is difficult to say that this treaty cannot be abrogated without such third State's consent. Thus it cannot be maintained that third Powers at peace with Germany, which are entitled to free passage through the Kiel Canal, under Article 380 of the Treaty of Versailles, can by their veto prevent the abrogation of that provision, notwithstanding the fact that they took no part in this Treaty.

Even if Switzerland had a right under a stipulation in her favour, she could only exercise it as long as the Treaty of 1815 has not been abrogated by the Signatory Powers.

The foregoing conclusions are supported by international precedent in the case of the Aaland Islands. The position of Sweden with regard to the Convention signed on March 30th, 1856, between France, Great Britain and Russia regarding the demilitarization of the Aaland Islands is the same as that of Switzerland with regard to the Treaty of November 20th, 1815.

The report of the Committee of Jurists (*Official Journal of the League of Nations*, October 1920, p. 18) defines the legal position of Sweden in regard to the Treaty of March 30th, 1856, and formulates the principles applying to the case:

"As concerns Sweden, no doubt she has no contractual right under the provisions of 1856, as she was not a signatory Power. Neither can she make use of these provisions as a third Party in whose favour the contracting Parties had created a right under the Treaty, since—though it may, generally speaking, be possible to create a right in favour of

a third Party in an international convention—it is clear that this possibility is hardly admissible in the case in point, seeing that the Convention of 1856 does not mention Sweden, either as having any direct rights under its provisions, or even as being intended to profit indirectly by the provisions. Nevertheless, by reason of the objective nature of the settlement of the Aaland Islands question by the Treaty of 1856, Sweden may, as a Power directly interested, insist upon compliance with the provisions of this Treaty in so far as the contracting Parties have not cancelled it. This is all the more true owing to the fact that Sweden has always made use of it and it has never been called in question by the signatory Powers.”

For the foregoing reasons, the conclusion of the undersigned is that Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, has abrogated the provisions of the Treaty of November 20th, 1815, regarding the free zone of the District of Gex, and has not abrogated the provisions of the Treaty of Turin of March 16th, 1816, regarding the free zone of Upper Savoy.

The facts antecedent to the Treaty of Versailles which are considered relevant by the Court and which led to the drafting of Article 435, paragraph 2, containing the declaration of the High Contracting Parties to the effect that the old provisions “are no longer consistent with present conditions”, may, by application of the clause *rebus sic stantibus*, lead to the abrogation of the Treaty of March 16th, 1816, concerning the free zone of Upper Savoy, in virtue of an agreement freely concluded between France and Switzerland.

(Signed) DEMETRE NEGULESCO.
